

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Gardner	Team: Squad #06	CCRB Case #: 201608880	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 10/19/2016 11:30 PM	Location of Incident: Inside § 87(2)(b)	18 Mo. SOL 4/19/2018	Precinct: 40		
Date/Time CV Reported Sat, 10/22/2016 1:41 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 10/24/2016 10:07 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Steven Degree	02179	943141	INT CIS
3. DTS Carlos Linares	05515	922650	ESS 03

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Jason Fernandez	5289	940137	040 PCT
2. POM Rostislav Kipervaser	08614	950687	040 PCT
3. DI Brian Hennessy	00000	922491	040 PCT
4. POM Felipe Ortiz	09291	939152	040 PCT
5. POM Jeffrey Sisco	27744	946263	ESS 03
6. DTS Michael Dennis	4175	940080	ESS 04
7. DTS Niall Leonard	07613	919294	ESS 04
8. LT Michael Licitra	00000	906642	E S U
9. DT2 Everaldo Taylor	06908	918390	ESS 02
10. DTS Brian Moncayo	4256	939053	ESS 02
11. DTS Robert Downes	04773	925213	ESS 03

Officer(s)	Allegation	Investigator Recommendation
A . SGT Steven Degree	Abuse: Sgt. Steven Degree entered and searched § 87(2)(b) in the Bronx.	A . Exonerated
B . Officers	Discourtesy: Officers spoke discourteously to individuals.	B . Officer(s) Unidentified
C . DTS Carlos Linares	Discourtesy: Det. Carlos Linares spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On October 19, 2016, at approximately 11:45 p.m., officers assigned to the 40th Precinct, the Intelligence Bureau, and ESU executed a no-knock search warrant at the home of § 87(2)(b) and § 87(2)(b) located at § 87(2)(b) in the Bronx (**Allegation A**). PO Felipe Ortiz from the 40th Precinct, who was not on scene, obtained the search warrant and Sgt. Steven Degree from the Intelligence Bureau was the supervising officer on scene. PO Jeffery Sisco, Det. Carlos Linares, and Det. Michael Dennis from ESU were the first officers to enter the apartment in regards to the search warrant. While § 87(2)(b) was standing outside of her apartment door during the search warrant execution, she allegedly heard multiple officers say, “Get down on the ground motherfucker!” to the individuals in the residence (**Allegation B**). § 87(2)(b) was placed in handcuffs by Det. Carlos Linares from ESU after the officers entered the apartment. Before § 87(2)(b) was handcuffed, Det. Linares allegedly said, "Put your fucking body on the floor" (**Allegation C**). § 87(2)(b) the son of § 87(2)(b) and § 87(2)(b) was arrested by Det. Jason Fernandez from the 40th Precinct as a result of this incident. § 87(2)(b) was charged with § 87(2)(b).

Video Footage

There was no video footage obtained for this incident.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the arrest of § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- § 87(2)(b) filed a Notice of Claim regarding this incident and she did not specify the amount of monetary compensation she is seeking (**see Board Review 8**).

Civilian and Officer CCRB Histories

- This was the first CCRB complaint filed by § 87(2)(b) (**see Board Review 9**).
- This was the first CCRB complaint filed by § 87(2)(b) (**see Board Review 10**).
- Sgt. Degree has been a member of the service for 9 years and there have been 29 prior allegations in 10 complaints made against him. In CCRB case # 201310423, stop, frisk, and search allegations were all substantiated against Sgt. Degree. The Board recommended instructions, but the NYPD issued command discipline.
- Det. Linares has been a member of the service for 18 years and there have been 3 prior allegations in 2 complaints made against him. In CCRB case # 201501992, a search allegation was substantiated against Det. Linares. The Board recommended command discipline, but the NYPD issued formalized training.

Potential Issues

- Witnesses § 87(2)(b) and § 87(2)(b) were uncooperative with providing a statement regarding this incident (**see Board Review 13**).

- There were several officers involved in this search warrant execution and only three officers that were interviewed entered the apartment. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)

§ 87(2)(g). The officer who requested the search warrant, PO Ortiz, was also not on scene during this incident.

§ 87(2)(b) acknowledged that she was outside of her apartment when she heard officers allegedly say, "Get down on the ground motherfucker!" Since § 87(2)(b) was unable to provide a description of the officers that made this statement, and none of the officers interviewed for this investigation acknowledged hearing this statement being made, § 87(2)(g)

§ 87(2)(b) was unable to provide a description of the officer that allegedly told him, "Put your fucking body on the floor." Both Det. Linares and PO Sisco stated that Det. Linares was the officer that handcuffed § 87(2)(b). Det. Linares acknowledged that he may have told § 87(2)(b) to get down on the ground before he handcuffed § 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: Sgt. Steven Degree entered and searched § 87(2)(b) in the Bronx.

It is undisputed that officers entered and searched § 87(2)(b) in the Bronx. The officers possessed a valid no-knock search warrant issued for this residence (**see Board Review 11**). PO Ortiz from the 40th Precinct requested this search warrant and it was signed by the honorable judge § 87(2)(b)

New York Criminal Procedure Law §690.50 states that officers may forcibly enter a location pursuant to a valid search warrant (**see Board Review 12**).

§ 87(2)(g), it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B – Discourtesy: Officers spoke discourteously to individuals.

§ 87(2)(b) stated that after officers entered her home and she was struck with a police shield, she was taken outside of her apartment into the hallway by multiple officers. § 87(2)(b) was immediately placed in handcuffs once she was taken to the hallway outside of her broken apartment door. § 87(2)(b) remained in handcuffs outside of her apartment door while other officers conducted a search. From outside of the residence, as officers searched her apartment, § 87(2)(b) heard multiple officers say, “Get down on the ground motherfucker!” § 87(2)(b) was unsure of which officers said this or who was issued that command since she was still outside of her apartment (see Board Review 1).

§ 87(2)(b) who was inside the home at the time of the search and the only other occupant to provide a sworn statement, did not allege that any officers used the word, “Motherfucker” during this incident (see Board Review 2).

PO Sisco acknowledged that he was the first officer to enter § 87(2)(b)'s residence during this incident. As PO Sisco entered the residence, he yelled the commands, “Police! Search warrant! Get on the ground!” PO Sisco denied saying, “Get down on the ground motherfucker,” and did he did not hear any other officers say this. After PO Sisco entered the apartment and walked past § 87(2)(b) with a police shield in his hand, he did not have any other contact with her during this incident (see Board Review 5).

Det. Linares entered the apartment behind PO Sisco. Det. Linares denied saying, “Get down on the ground motherfucker,” and did he did not hear any other officers say this (see Board Review 17).

Det. Dennis acknowledged that he was listed as a bunker officer on the ESU Supplemental Report, but he did not have any recollection of this incident (see Board Review 4).

Although Det. Jason Fernandez from the 40th Precinct was listed as § 87(2)(b)'s arresting officer during this incident, he did not acknowledge entering § 87(2)(b). Det. Fernandez was assigned to window security and remained outside while the search warrant was executed (see Board Review 3).

§ 87(2)(g)

§ 87(2)(g) _____ Therefore,
it is recommended that **Allegation B** be closed as **Officers unidentified**.

Allegation C – Discourtesy: Det. Carlos Linares spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after officers entered his apartment by breaking down the door, they struck § 87(2)(b) and § 87(2)(b) with a police shield. § 87(2)(b) was then escorted outside of the apartment by multiple officers. § 87(2)(b) was standing outside of his bedroom and

asked what was going on. One of the officers responded, "Put your fucking body on the floor," as they approached him. This was the first command issued to § 87(2)(b) and he was taken to the ground before he had an opportunity to cooperate with the orders. § 87(2)(b) could not provide a description of the officer that said this to him since the incident happened very quickly and his main concern was the safety of his son and his wife. § 87(2)(b) was then handcuffed by one of the officers involved with this incident (**see Board Review 2**).

Det. Linares and PO Sisco advanced towards the end of the hallway and observed § 87(2)(b) standing near the doorway of one of the bedrooms. Det. Linares believed that he told § 87(2)(b) to, "Get down on the ground," but he was not certain. PO Linares did not tell § 87(2)(b) "Put your fucking body on the floor," and he did not hear any other officers say this phrase during this incident. § 87(2)(b) complied with Det. Linares by moving to the ground face-down without offering any resistance. Det. Linares was able to handcuff § 87(2)(b) on his own and § 87(2)(b) did not offer resistance during the handcuffing process (**see Board Review 17**).

PO Sisco confirmed that Det. Linares was the officer that handcuffed § 87(2)(b). PO Sisco instructed § 87(2)(b) to place his hands behind his back before Det. Linares handcuffed him. PO Sisco did not hear Det. Linares tell § 87(2)(b) "Put your fucking body on the floor," and he did not hear any other officers say that phrase. PO Sisco did not see Det. Linares actually place § 87(2)(b) in handcuffs and he did not assist him in the handcuffing process (**see Board Review 5**).

Det. Linares denied saying, "Put your fucking body on the floor," to § 87(2)(b) during this incident. PO Sisco did not hear Det. Linares say this phrase or use any profanity during this incident. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date